

Default Judgment is being vacated, any execution or judgment lien(s) are extinguished as a matter of law. An execution or judgment lien is entirely dependent on the judgment. “A lien ... cannot exist apart from the judgment upon which it is based. Thus, in the ordinary course of events when the judgment is vacated by court order the lien will also cease to exist, because the effect of a vacating order is to eliminate the judgment. [Citation.] Once vacated, the status of the parties that existed prior to the judgment is restored and the situation then prevailing is the same as though the order or judgment had never been made. [Citation.]” *Bulmash v. Davis* (1979) 24 Cal.3d 691, 697.

Disposition

The Court finds and orders as follows:

1. The Motion to Vacate Judgment is GRANTED.
2. The Default and Default Judgment are hereby SET ASIDE and VACATED.
3. Any and all writ(s) of execution and/or abstract(s) of judgment are hereby VACATED, RECALLED and QUASHED.
4. If any abstract(s) of judgment were recorded, Plaintiff shall, within thirty (30) days of notice of entry of this order, take all reasonable steps to prepare and record with the County Recorder a release of the abstract(s) of judgment and any judgment lien thereunder, pursuant to Code of Civil Procedure section 697.400 and all applicable law. Thereafter, Plaintiff shall file and serve a Notice of Release of Lien.
5. **Next CMC Date.** This matter is set for a Case Management Conference (CMC) on **February 18, 2026, 8:30 am**, in Department 34 of the Court (the “Next CMC Date”). Plaintiff shall be prepared to discuss the status of service at the Next CMC Date.

14. 9:00 AM CASE NUMBER: N25-0377
CASE NAME: KATHERINE STAUDT VS. UNEMPLOYMENT INSURANCE APPEALS BOARD
HEARING ON DEMURRER TO:
FILED BY:
TENTATIVE RULING:

Respondents California Unemployment Insurance Appeals Board (“CUIAB”) and Employment Development Department (EDD)* filed, on October 28, 2025, a Demurrer to Petitioner Katherine Staudt’s (“Petitioner”) Petition for Administrative Mandate regarding a decision of the CUIAB. The Demurrer was set for hearing on December 16, 2025. The hearing date and briefing schedule were set pursuant to a prior scheduling order issued by the Court. See Joint Case Scheduling Order entered October 6, 2025.

An Opposition was filed by Petitioner on November 21, 2025.

*The Demurrer is brought on behalf of the EDD, as well as the CUIAB. The EDD ostensibly appears as a respondent, although the EDD is not named in the caption of the operative

Petition as a named party. There are references to the EDD in the Petition. See Petition for Writ of Administrative Mandate filed February 20, 2025 (the “Petition”). In any event, CUIAB and the EDD are collectively referred to herein as the “Respondents.”

Background

This case involves a challenge to a decision (the “Administrative Decision”) of the CUIAB, relating to unemployment benefits. The Petition refers to “RESPONDENTS latest Administrative decision” which was issued August 15, 2024. See Petition, p. 3, ¶14-16 and p. 5, ¶36. The Petition refers to an “attached decision,” but does not actually attach any such decision as an exhibit to the filed Petition. See Petition, p. 3, ln. 18.

Respondents’ Demurrer provides more background. See Respondents’ Memorandum of Points and Authorities filed October 28, 2025 (“Respondents’ MPA”) p. 5 *et seq.*

Respondents’ MPA states that the subject Administrative Decision is the CUIAB’s decision issued August 15, 2024 affirming the administrative law judge’s ruling of June 3, 2024, citing to the administrative record.**

**The Respondents’ MPA repeatedly refers to “AR” in various citations, without defining that apparent shorthand reference. Nonetheless, this reference appears to be meant to refer to the administrative record relating to the Administrative Decision. However, the Court has no such administrative record filed or lodged with the moving papers. Even if it were filed or lodged, the Court cannot consider such materials on a demurrer, as discussed further below. The Court disregards any and all citations and purported factual averments based on apparent citations to the AR.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party’s pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman’s Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685.

1. Petitioner Failed to Timely File the Petition within Statutory Time Period.

Respondents first argue that the Demurrer should be sustained because the Petition was not timely filed with the Court and is therefore barred as a matter of law. See Respondents’ MPA, p. 8.

Respondents rely on matters extrinsic to the pleading, i.e. the assertion regarding

information as to the date of issuance of the subject Administrative Decision. See Respondents' MPA, p. 8, Ins. 27-28. Respondents contend the Administrative Decision was issued on August 15, 2024. *Id.* However, Respondents' citation refers only to the administrative record. As discussed above, the Court is disregarding any such matters.

Nonetheless, the Petition makes it clear, on its face, that that subject Administrative Decision was issued on **August 15, 2024**. See Petition, p. 3, ¶14-16 and p. 5, ¶36.

The Unemployment Insurance Code provides an outside time limit for judicial review of a decision of the CUIAB:

Notwithstanding any other provision of law, the right of the director, or of any other party except as provided by Sections 1241, 1243, and 5313, to seek judicial review from an appeals board decision shall be exercised **not later than six months after the date of the decision of the appeals board or the date on which the decision is designated as a precedent decision, whichever is later.**

Unemp. Ins. Code § 410 (emphasis added).

Six months after the date of the decision of the appeals board here was Saturday, February 15, 2025. Assuming the deadline rolled over to the next court day, the deadline would have been Tuesday, **February 18, 2025**.***

The Petition was filed on February 20, 2025. It is therefore, untimely. This is a jurisdictional bar to this Court's judicial review of the subject Administrative Decision. See *Tielsch v. City of Anaheim* (1984) 160 Cal.App.3d 576, 579 (court has no jurisdiction to entertain petition for extraordinary relief unless filed on or before the statutory deadline). The Demurrer is sustained on this ground.

*** Respondents contend the deadline was February 15, 2025. However, the Court concludes that the general weekend/holiday extension provisions of the Code of Civil Procedure apply. See Code Civ. Proc. §§ 12 and 12a; see *Deleon v. BART Dist.* (1983) 33 Cal.3d 456, 461 ("Section 12a applies to statutes of limitation in general" and applied to the time limit of Government Code section 945.6 for bringing an action against a public entity.). Even if the statutory weekend/holiday extensions did not apply, the Petition would nonetheless have been untimely. Also, "the date on which the decision is designated as a precedent decision" does not appear to have any application to the calculation of the deadline in this case and the "later" date is the February 18, 2025 date.

2. The Court Grants Petitioner Leave to Amend the Petition as to Whether Petitioner Can Plead a Cognizable Extension or Tolling of the Time to File.

Petitioner appears to concede the deadline to file the Petition was February 18, 2025. See Opposition, p. 5. However, Petitioner describes various circumstances which Petitioner argues justify the belated filing and extend or toll the running of the period to file.

Petitioner does not cite to any pleaded allegations regarding the extension or tolling of the statutory time or some basis for avoiding the statutory time bar.

Rather, Petitioner relies on a submitted declaration. The Court disregards the Declaration

of Petitioner filed with the Opposition. The Court will not consider—as it cannot on a demurrer—the factual averments in the declaration.

However, the Court will take the statements regarding the circumstances briefed by Petitioner’s Opposition as a proffer of facts that Petition may be able to plead upon an amendment of the operative Petition. For that reason, leave to amend is granted.

3. The Petition has Named the District as a Party.

Respondents also request that the Court dismiss the Petitioner for failure to join an indispensable party, Petitioner’s employer, the Mt. Diablo Unified School District (the “District”).

A plaintiff must join as parties all persons whose interests are so directly involved that the court cannot render a fair adjudication in their absence. Code Civ. Proc. § 389; see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 2:151. A failure to join an indispensable party may be raised by demurrer. *Id.* at § 2:185. A person is an indispensable party if his or her rights must necessarily be affected by the judgment. *Morrical v. Rogers* (2013) 220 Cal.App.4th 438, 463.

The Petition names the District as the “Real Party in Interest” and contains allegations as to its capacity. See Petition, Petition, p. 1, ¶12. Thus, the District has been “joined as a party in the action” as required by Code of Civil Procedure section 389.

Despite arguing that the Petition be dismissed for failure to join an indispensable party, Respondents concede the District has been named in the Petition. See Respondents’ MPA, p. 11, lns. 4-6 (“Here, although petitioner names her employer in the caption, there is no evidence, either on the court’s electronic docket or by way of a proof of service, that petitioner has served the District with the petition.”). What Respondents appear to actually be raising is the issue of non-service.

No authority is cited for the proposition that a demurrer lies based on non-service of an indispensable party otherwise named as a party in the operative pleading. It should also be noted that such a theory relies on extrinsic matters beyond the face of the pleadings.

The Court expresses no opinion as to whether, at some stage of the proceedings, a motion to dismiss the case might be cognizable under Code of Civil Procedure section 389(b) if Petitioner fails to join an indispensable party in the sense that Petitioner never serves the Petition to bring the District into the action. See *Union Carbide Corp. v. Superior Court* (1984) 36 Cal.3d 15, 24 (a motion to dismiss on the ground that a person has not been joined and justice requires that the action should not proceed in the person’s absence may be made as late as the trial on the merits).

Moreover, if service is not made such that the case is not at issue, then presumably, the case will not move forward to trial until that matter is addressed procedurally.

The Demurrer is overruled on this ground.

Disposition

The Court finds and orders as follows:

1. The Demurrer is OVERRULED IN PART and SUSTAINED IN PART, with leave to amend.
2. If necessary, the parties are encouraged to discuss amendment of the Scheduling Order to permit additional time if any further demurrer proceedings are anticipated following any amendment of the Petition.